12.4 Indigenous People and their Rights

Definition

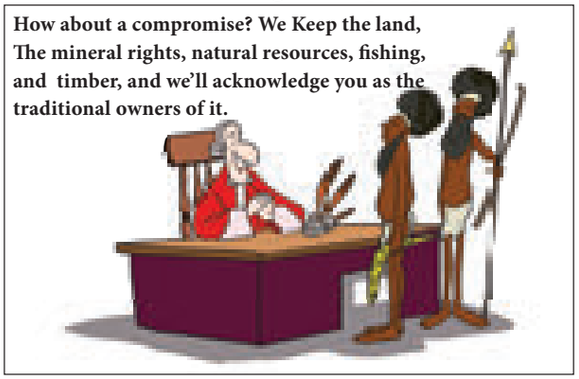
In a popular sense, the very meaning of cultural diversity is often represented by indigenous peoples. Approximately 350 million indigenous peoples belonging to 5000 different cultures are residing over 20 percent of the Earth's territory. Of all the challenges concerning the realm of indigenous people and their rights, the most arduous has been the inability to reach a consensus on who are indigenous peoples. Hence, the dilemma centres on the fundamental question vis-à-vis the factors that converge in building what indigeneity means. Even the UN Working Group on the Rights of Indigenous Peoples could not arrive at a formal definition that explains the true identity of theirs. The primary dilemma that made this process a rigmarole was the inconclusiveness on working out a set of absolute parameters that assign indigeneity to a group.

Self-Identification



There is no international agreement on the definition of indigenous peoples. Indigenous communities decide their case of indigeneity. It is called "Self-Identification".

Is it the smallness in the population that matters? Or is it the proximity to one's own land, and the corresponding longevity, and a conventional non-industrial lifestyle that make up the indigenous identity? An element of uniformity was achieved on defining certain groups such as the First Nation/Native American of North America, the residents of the Amazon jungles, Inuit from the far North and the indigenous groups based in Papua New Guinea. Out of the multiple attempts in search of a universally recognized definition, the one by Julian Berger, a UN official, stands important. According to him, "the notion of belonging to a separate culture with all its various elements – language, religion, social, political systems, moral values, scientific and philosophical knowledge, beliefs, legends, laws, economic systems, technology, art, clothing, music, dance, architecture, and so on – is central to indigenous people's own definition". He further states, indigenous peoples:



1) Are the descendants of the original habitants of a territory which has been overcome by conquest;
2) Are nomadic and semi-nomadic peoples, such as shifting cultivators, herders and hunters and gatherers, and practice a labour-intensive form of agriculture which produces little surplus and has low energy needs;
3) Do not have centralized political institutions and organize at the level of the community and make decisions on a consensus basis;
4) Have all the characteristics of a national minority: they share a common language, religion, culture, and other identifying characteristics and a relationship to a particular territory but are subjugated by a dominant culture and society;

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